

PCU323020 JENICEK, MICHAEL vs. IHG MANAGEMENT (MARYLAND) LLC et al

County: tulare

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Motion: Defendant's (1) Demurrer and (2) Motion to Strike

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Re: JENICEK, MICHAEL vs. IHG MANAGEMENT (MARYLAND) LLC et al

Case No.: PCU323020

Date: June 23, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's (1) Demurrer and (2) Motion to Strike

Tentative Ruling: (1) To sustain the demurrer with leave to amend as to the first, fourth, fifth and seventh causes of action; Plaintiff shall have ten (10) days to file an amended complaint; To sustain the demurrer to the sixth cause of action without leave to amend; (2) To find the motion to strike moot via the ruling on demurrer and the granting of leave to amend.

Facts Common to (1) and (2)

In this matter, Plaintiff brings causes of action against Defendants IHG Management (Maryland) LLC; TC Investments Visalia, LLC; Holiday Inn Express Visalia - Sequoia Gateway Area By IHG; Gary Theraldson, Tharaldson Hospitality Management, LLC (formerly Doe 1) and Does 2 through 20 ("Defendants") for (1) Battery (2) Negligence (3) Premises Liability (4) Intentional Infliction of Emotional Distress (5) Fraudulent Concealment (6) Private Nuisance (7) Public Nuisance and (8) Breach of Contract with respect to bedbug bites allegedly occurring during Plaintiff's stay at a hotel on or about August 28, 2023 owned and operated by Defendants. (Complaint ¶15.)

Plaintiff alleges that on or about August 30, 2023, he awoke with bed bug bites, checkout of the hotel, and was later diagnosed with bed bug bites. (Complaint ¶¶17, 18, 19.)

Plaintiff alleges Defendants "deliberately and recklessly chose not to inspect or otherwise ensure that Plaintiff's room was free of Cimex lectularius ("bedbugs") immediately before Plaintiff's stay at the hotel, willfully disregarding knowledge of the prior bedbug infestation known to Defendants." (Complaint ¶23.) Further, that Defendants failed to eradicate a prior bedbug infestation of Plaintiff's room and did not ensure that the bed in Plaintiff's room was free from bedbugs before renting it to Plaintiff, despite knowledge of the prior infestation in that room. (Complaint ¶24.)

Further, that Defendants had prior knowledge of the infestation in the hotel, but failed to eradicate such infestation, including as to Plaintiff's room and deliberately chose not to notify Plaintiff of their presence. (Complaint ¶¶25, 26, 29, 44)

Additionally that "In their online reviews and complaints, many guests state that they woke up to bedbug bites. Despite having knowledge of several guest reviews regarding bedbugs found at the Subject Hotel, Defendants, and DOES 1 through 20, inclusive, did nothing to eradicate the bedbug infestation or warn the hotel guests and business invitees of the unsanitary and unhealthy problem and continued to rent out the hotel room at the Subject Hotel." (Complaint ¶28.)

Further that "Front desk personnel, hotel management, and housekeeping employees and staff at the subject hotel were all aware and/or had knowledge of the existence of bedbug infestation in the hotel and, specifically, Plaintiff's room" and that such staff "...have authority to speak on behalf of Defendants, and DOES 1 through 20, in relation to what an individual such as this Plaintiff would expect during his stay." (Complaint ¶¶30, 31.) Further, that such front desk staff intentionally did not disclose the infestation during check in, "...a fact known to those employees, staff, and agents, and which their employees, staff, and agents, knew Plaintiff would not discover on his own prior to checking-in to his hotel room." (Complaint ¶32.)

Additionally, that "Defendants, and DOES 1 through 20, in management of their hotel's housekeeping and maintenance, exercised substantial independent judgment in their decision making by authorizing and ratifying employees and staff at the hotel to turn a blind eye in respect to the sanitary conditions of their hotel rooms, including failing to regularly change bed sheets, bed skirts, inspecting the bed mattresses and headboards, and failing to specifically inspect and check" and failed "to take action to properly and thoroughly inspect the rooms, and failing to investigate and discipline housekeeping and maintenance employees when informed of prior similar incidents." (Complaint ¶35.)

Further, that Defendants "authorized or ratified housekeeping staff at the hotel to either not change bed skirts on a regular basis or to not inspect and ensure that bed skirts are free" from bed bugs. (Complaint ¶36.)

Further, that Defendants' "routine practice of authorizing housekeeping staff to not change bed skirts regularly or to not properly inspect and ensure that such bed skirts are free from bedbugs prior to a guest's arrival, show that Defendants, and DOES 1 through 20, have a pattern and culture of extreme indifference and reckless disregard for the value of human life and the rights of their guests." (Complaint ¶38.)

Additionally, that "failure to take the necessary steps and precautions to either (1) ensure proper sanitary, safe, and clean conditions of the hotel rooms, (2) eliminate unsanitary conditions such as bed bugs, and (3) warn the hotel guests of the possible infestation while disregarding knowledge of prior infestations amounts to deliberately choosing not to inspect and complete reckless disregard to the health and safety of the Plaintiff" and that such amounts to "inaction." (Complaint ¶40.)

As part of a "pattern and culture of extreme indifference, the hotel management did not implement adequate policies and procedures to sufficiently train employees of the hotel to inspect rooms for bedbug infestations and to protect hotel guests from exposure to bedbug infestations prior to Plaintiff's stay." (Complaint ¶41.)

Plaintiff further alleges that Defendants "authorized and/or ratified the conduct of their Subject Hotel employees, corporate, and management by: (1) failing to terminate such employees, management and maintenance personnel responsible for Plaintiff's injuries; (2) failing to properly train and educate said employees on inspection, sanitation, cleanliness, and other uninhabitable conditions in the Subject Hotel and rooms at the Subject Hotel; (3) failing to protect guests and business invitees such as Plaintiff by their failures in the maintenance of the Subject Hotel, and to continuously inspect and check for insects (i.e. bedbugs), infestations and other uninhabitable conditions despite having knowledge of said conditions; (4) permitting and tolerating a common practice and culture of extreme indifference by the employees who failed to promptly and properly address said conditions occurring at the Subject Hotel; (5) permitting and allowing a common practice and culture of extreme indifference by failing to properly inspect and ensure the rooms at the Subject Hotel, including Plaintiff's assigned room, to be free from bedbug infestations and other said uninhabitable conditions; (6) failing to implement adequate policies and procedures to prevent *Cimex lectularius* (bedbug) infestations and other uninhabitable conditions to protect hotel guests and business invitees from injuries such as those Plaintiff sustained; and (7) failing to implement and update new policies,

procedures, and training of the employees prior and subsequent to Plaintiff sustaining injuries.” (Complaint ¶¶42, 47)

As to battery, Plaintiff alleges further that:

“51. The intent of Defendants, and DOES 1 through 20, is satisfied and evident from Defendants, and DOES 1 through 20, inclusive, recklessly failing to warn Plaintiff of the dangerous bedbug infestation in their room, given Defendants’, and DOES 1 through 20, inclusive, prior knowledge of an infestation. Plaintiff did not receive any kind of warning or statement from Defendants, and DOES 1 through 20, inclusive, that the Subject Hotel had an infestation of bedbugs and did not regularly change the bedding, bed sheets, pillows, and skirts of the beds or thoroughly check and inspect them for infestations. Such an extreme departure from an ordinary standard of care amounts to wanton and reckless misconduct.” (Complaint ¶51.)

Further, that Defendants’ intentional, deliberation and reckless actions and failures to eradicate include:

“(1) deliberate actions in failing to properly and thoroughly inspect and clean the room assigned to Plaintiff, and to ensure the room was free from infestations of bedbugs, and the like, prior to renting and assigning the room to Plaintiff; (2) intentional and deliberate failures to treat and eliminate infestation of bedbugs, and the like, occurring in the rooms of the Subject Hotel; (3) intentional, deliberate, and reckless choice not to inspect for bedbugs and the spread of bedbug infestations at the Subject Hotel; (4) intentional, deliberate, and reckless choice in requiring Plaintiff to be assigned and isolated in the room of the Subject Hotel despite having prior knowledge of the bedbug infestation from the Plaintiff; (5) intentional, deliberate, and reckless choice not to properly train housekeeping staff to thoroughly clean and maintain the rooms in a sanitary and habitable condition; (6) willful disregard of knowledge of Cimex lectularius (bedbugs) infestation and other uninhabitable conditions in Plaintiff’s room; and (7) intentional, deliberate, and reckless choice in failing to give notice to Plaintiff of the presence of the said uninhabitable conditions occurring in Plaintiff’s room at the Subject Hotel.” (Complaint ¶53.)

As to the IIED claim, Plaintiff alleges the conduct was:

“intentional, extreme, and outrageous—namely, because of the following egregious and reckless conduct: (1) Defendants’, and DOES 1 through 20, willful disregard of a Cimex lectularius infestation that was either known or should have been known from prior infestations in the hotel and Plaintiff’s room; (2) Defendants’, and DOES 1 through 20, deliberate and reckless choice to abstain from notifying Plaintiff of a known presence of Cimex lectularius in Plaintiff’s room, prior to Plaintiff’s arrival; (3) Defendants’, and DOES 1 through 20, deliberate choice not to eradicate a bedbug infestation in Plaintiff’s room, which was already known to Defendants, and DOES 1 through 20; (4) Defendants’, and DOES 1 through 20, deliberate and reckless choice not to require housekeeping staff to change the bed skirts regularly or not to inspect and ensure that the bed skirts are free from a Cimex lectularius infestation immediately prior to Plaintiff’s stay; (5) Defendants’, and DOES 1 through 20, deliberate and reckless choice not to inspect or ensure that Plaintiff’s room was free of Cimex lectularius immediately prior to Plaintiff’s stay, willfully disregarding knowledge of the prior bedbug infestation in Plaintiff’s room; (6) Defendants’, and DOES 1 through 20, routine practice of showing extreme indifference to the danger of bedbug infestations; (7) Defendants’, and DOES 1 through 20, failure to have adequate policies and procedures to properly train employees of the hotel to inspect rooms for bedbug infestations and to adequately protect hotel guests from an exposure to bedbug infestations; and (8) Defendants’, and DOES 1 through 20, failure to implement any new policies and procedures after Plaintiff’s injuries to prevent any further Cimex lectularius infestations in their hotel, which again exemplifies their extreme indifference to the rights of their guests and the value of the human life” (Complaint ¶88.)

As to concealment, Plaintiff alleges Defendants were aware of the infestation in the room assigned to Plaintiff, that there were prior incidents and reviews posted on online platforms and that Defendants “...owed a duty to its guests and business invitees to disclose hidden dangers that could not be discovered by such invitees through the exercise of due care. Here, the failure to warn Plaintiff regarding the dangers of the bedbug infestation is a material misrepresentation by omission. Defendants’, and DOES 1 through 20, inclusive, failure to warn or disclose existence of infestation of bedbugs was made with the intent to continue to rent out the room to guests and business invitees such as Plaintiff without burdening themselves with the necessary procedures of maintaining sanitary rooms at the Subject Hotel. The actions of Defendants, and DOES 1 through 20, amounted to suppression and concealing the truth of bedbug infestation existing in the rooms at the Subject Hotel with knowledge of the presence of bedbugs and knowledge that they have failed to completely eradicate the infestation yet continued to rent out the rooms to make a profit.” (Complaint ¶¶98-100.)

As to private nuisance, Plaintiff alleges this cause of action is based on Civil Code section 3501 and that the infestation was "...injurious to the health and safety of the Plaintiff, and were further indecent and offensive to the sense of Plaintiff, and interfered substantially with Plaintiff's comfortable enjoyment of the room at the Subject Hotel." (Complaint ¶¶119-120.)

As to public nuisance, Plaintiff alleges "This bedbug infestation affects the community at large as this type of infestation is easily spread from (1) one hotel room to another, (2) personal property of those occupying the hotel rooms, including Plaintiff's luggage, clothing, shoes, and other tangible personal property that can be transported from the Subject Hotel room to Plaintiff's residence thereby creating a risk of bed bug infestation in Plaintiff's residence, (3) spread of bed bug infestation from the Subject Hotel room to the public and into their residence which can affect the community at large." (Complaint ¶131.)

Plaintiff seeks punitive damages as to the first, second, third, and fifth causes of action.

Defendants demurrer to the complaint as to the causes of action for (1) Battery, (4) Intentional Infliction of Emotional Distress (5) Fraudulent Concealment (6) Private Nuisance and (7) Public Nuisance

Further, Defendants seek to strike 44 portions of the complaint, which appear to focus on allegations related to punitive damages and corporate liability.

No opposition appears to have been filed.

Authority and Analysis

(1) Demurrer

The purpose of a demurrer is to test whether a complaint "states facts sufficient to constitute a cause of action upon which relief may be based." (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if "the defendants negate any essential element of a particular cause of action." (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062) But "doubt in the complaint may be resolved against plaintiff and facts not alleged are presumed not to exist. (Id.)

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) No other extrinsic evidence can be considered (i.e., no "speaking demurrers"). (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

First Cause of Action – Battery

The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching. [Citations.]” (So v. Shin (2013) 212 Cal.App.4th 652, 669.)

In order to establish a case of civil battery, the complaint must plead that Defendant acted with wanton, willful or reckless disregard of plaintiff's rights. (Lopez v. Surchia (1952) 112 Cal.App.2d 314, 318.) Allegations of intentional wrongdoing must be pled with specificity. (Allen v. Jones (1980) 104 Cal.App.3d 207, 215.)

In order to establish a case of civil battery, the complaint must plead that Defendant acted with wanton, willful or reckless disregard of plaintiff's rights. (Lopez v. Surchia (1952) 112 Cal.App.2d 314, 318.) Allegations of intentional wrongdoing must be pled with specificity. (Allen v. Jones (1980) 104 Cal.App.3d 207, 215.)

Plaintiff's claim for battery is based on allegations that Defendants was aware of the bedbugs and failed to act to remove the bedbugs or otherwise to warn Plaintiff of their presence. Plaintiff does not allege that Defendants committed an intentional act or affirmatively acted to perpetrate an offensive touching. There are no facts pled that Defendants acted with substantial certainty that Plaintiff would be bitten by bugs or otherwise released the bugs into the rooms.

To the Court, the allegations pled sound in negligence as opposed to battery.

Fourth Cause of Action – IIED

Like battery, intentional infliction of emotional distress requires an intentional act. "The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Cervantez v. J. C. Penney Co. (1979) 24 Cal.3d 579, 593.)

Further, Defendant notes the standard from McMahon v. Craig (2009) 176 Cal.App.4th 222, 236 regarding outrageous conduct, noting:

“In evaluating whether the defendant's conduct was outrageous, it is ‘not ... enough that the defendant has acted with an intent which is tortious or even criminal, or that he has intended to inflict emotional distress, or even that his conduct has been characterized by “malice,” or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort. Liability has been found only where the conduct has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.’”

Again, the Court does not find that the allegations of failure to eradicate bed bugs sound in intentional or reckless disregard as to IIED claims, even if alleged to be willful or intentional as to the failure to eradicate.

As such, the Court sustains the demurrer as to this IIED claim.

Fifth Cause of Action – Fraudulent Concealment

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Marketing West, Inc. v. Sanyo Fisher (USA) Corp. (1992) 6 Cal.App.4th 603, 612-613.)

"Fraud actions are subject to strict requirements of particularity in pleading ... [F]raud must be specifically pleaded. The effect of this rule is twofold: (a) General pleading of the legal conclusion of 'fraud' is insufficient; the facts constituting the fraud must be alleged. (b) Every element of the cause of action for fraud must be alleged in the proper manner (i.e., factually and specifically), and the policy of liberal construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any respect." (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 216.)

Less specificity is required when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (Bradley v. Hartford Acc. & Indem. Co. (1973) 30 Cal. App. 3d 818, 825.) Additionally, "[a] plaintiff's burden in asserting a fraud claim against a corporate employer is even greater. In such a case, the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Hamilton v. Greenwich Investors XXVI, LLC (2011) 195 Cal.App.4th 1602, 1614.)

Additionally, "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (Warner Construction Corp. v. City of Los Angeles (1970) 2 Cal.3d 285, 294.)

Here, there is no fiduciary or confidential relationship alleged.

The Court's review of the complaint reveals no allegations that Defendants made the requisite representations that the rooms were clean or sanitary, leaving out the presence of bed bugs. Rather, the allegations are that Defendants failed to disclose the known presence thereof or failed to eradicate the infestation. Further, the allegations of public disclosure of the presence of bed bugs via online reviews precludes that such facts were known or accessible only to the Defendants. Third, the Court finds no active concealment through the failure to eradicate or failure to clean the rooms or via any such representations about the status of the rooms.

Therefore, the Court sustains the demurrer to this cause of action for concealment.

Sixth Cause of Action – Private Nuisance

"Although 'any interest sufficient to be dignified as a property right' will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger or employee." (Venuto v. Owens-Corning Fiberglas Corp. (1971) 22 Cal.App.3d 116, 125.) Here, the complaint alleges Plaintiffs were staying at the hotel room temporarily, which does not establish a tenancy right. (Enter v. Crutcher (1958) 159 Cal.App.2d Supp. 841, 845 ["One who is merely stopping over at a place in a hotel, motel, rooming house, or who is vacationing is not a resident."].)

Therefore, the Court sustains the demurrer to the sixth cause of action for private nuisance.

Seventh Cause of Action – Public Nuisance

A nuisance is "[a]nything which is injurious to health" and a "public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons" (Civ. Code §§ 3479, 3480). To prevail on a public nuisance claim, Plaintiffs must show "that a defendant knowingly created or assisted in the creation of a substantial and unreasonable interference with a public right." (People v. ConAgra Grocery Prods. Co. (2017) 17 Cal.App.5th 51, 79.) Further, public nuisances are "substantial and unreasonable" "offenses against, or interferences with, the exercise of rights common to the public." (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 305.) "

Here, complaint pleads only a hypothetical, potential affect on the community in paragraph 131. There are insufficient allegations that the bed bugs actually spread from one hotel room to another, or into Plaintiff's personal property, or into the community at large.

Leave to Amend

A demurrer cannot be sustained without leave to amend where it appears that the facts alleged establish a cause of action under any possible legal theory or it is reasonably possible that the plaintiff can amend the complaint to allege any cause of action. (Canton Poultry & Deli, Inc v. Stockwell, Harris, Widom, and Woolverton (2003) 109 Cal.App.4th 1219, 1226.)

Here, the Court sustains the demurrer to the first, fourth, fifth and seventh causes of action with leave to amend.

The Court sustains the demurrer to the sixth cause of action for private nuisance without leave to amend.

(2) Motion to Strike

A party may file a timely notice of a motion to strike the whole or any part of a pleading. (Code Civ. Proc., § 435, subd. (b).) The motion may seek to strike any "irrelevant, false or improper matter inserted in any pleading" or any part of the pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) Irrelevant allegations include allegations that are not essential to the statement of a claim, allegations that are not pertinent to or supported by the claim and demands for judgment requesting relief not supported by the allegations. (Code Civ. Proc., § 431.10, subds. (b), (c).)

Because the Court has permitted leave to amend on causes of action seeking punitive damages, the Court finds the motion to strike moot.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.